

Superior Court of the State of California
County of Orange
TENTATIVE RULINGS FOR C61
HON. JENNIFER M. MCCARTNEY

Date: 6/24/2026

Courtroom Rules and Notices

The Court will continue to upload tentative rulings as they are completed. Please be sure to keep checking until 8:30 AM on the day of your hearing.

Written responses, oppositions, or filings that are filed later than 12:15 PM the day before the hearing on the motion will go on second call by the Court for the Court to have an opportunity to review any last-minute filings. If a party files a written response, opposition, or any filing after 12:15 PM on the day before the hearing, the party must ensure they are available for the court's afternoon calendar the day of the hearing.

Submitting on tentative rulings: If all counsel intend to submit on the tentative ruling and do not desire oral argument, please advise the Courtroom Clerk or Courtroom Attendant by calling (657) 622-5261 – both counsel need to state they are submitting on the tentative. Please do not call the Department unless all parties submit to the tentative ruling. If all sides submit on the tentative ruling and so advise the Court, the tentative ruling shall become the Court's final ruling, and the prevailing party shall give notice of the ruling and prepare an order for the Court's signature if appropriate under Cal. R. Ct. 3.1312.

Non-appearances: If nobody appears for the hearing and the Court has not been notified that all parties submit on the tentative ruling, the Court shall determine whether the matter is taken off calendar or the tentative ruling becomes the final ruling. The Court also might make a different order at the hearing. (*Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 436, 442, fn. 1.)

#	Case Name	Tentative
2	Luk vs. Johnson	The Court staff will provide counsel with the rulings on the objections that were filed with the Court. Due to the extremely voluminous filings and evidence, including counsel filing until 6/23/2026 at 2:25 PM on this matter, the Court's extensive calendar, and other voluminous filings, the Court will be continuing the motion for summary judgment. The Court will not accept any further filing on the motion.
3	30-2026-01556931 Northwood Place Apartments LLC vs. Ostrowski	The Court has read and considered the Plaintiff's Motion for Summary Judgment (ROA 42). A judge properly grants summary judgment when there are no triable issues of material facts and judgment is warranted as a matter of law. (California Code of Civil Procedure § 437c(c); <i>Bailey v. San Francisco District Attorney's Office</i> (2024) 16 Cal. 5th 611, 620.) The Plaintiff has the burden of establishing an unlawful detainer action for non-payment of rent pursuant to CCP 1161(2). Here, the Plaintiff established

		that it properly served a 3-day Notice to Pay or Vacate in 30 Days pursuant to the CARES Act on the Defendant on 2/12/2026, and the Notice contained all the required elements under CCP § 1161(2). The burden then shifts to the Defendants to establish any affirmative defenses to the unlawful detainer action. On May 29, 2026, the Plaintiff filed a Motion to Deem Request for Admission, Set One, Admitted (ROA 35). On June 10, 2026 the Court granted the Plaintiff's Motion and ordered "the Plaintiff's Motion to Deem Admitted the Facts Set Forth In Plaintiff's Request for Admission Set One be and hereby is granted and that the truth of all specified matters, and the genuineness of all specified documents, in the First Set of Requests for Admission, propounded by Plaintiff and served on Defendant Lana Ostrowski on May 21, 2026, be deemed admitted." (ROA 38) There are no affirmative defenses that the Defendant could establish under the law. Therefore, the Plaintiff has established there are no triable issues of material facts and judgment for the Plaintiff is warranted in this matter. The Court awards possession of the property located at 632 Hayes Street, Irvine, CA 92620, County of Orange. The lease is forfeited. Judgment applies to all unknown occupants, subtenants, or claimants. The Court awards monetary damages to the Plaintiff as follows: Past Due Rent: \$844.62 Holdover Damages: \$5,733.40 (109 days at \$52.60 a day) Attorney's Fees & Cost: \$837.90 Total Judgment: \$9,415.92 The Plaintiff is ordered to file a judgment form reflective of the Court's orders and serve notice of entry of judgment on the Defendants.
4	30-2026-01561663 FC Orange Associates LP vs. Borden	The Court has read and considered the Defendant's Motion for Judgment on the Pleadings (ROA 75) and Plaintiff's Opposition (ROA 121). The Court DENIES the Defendant's Motion for Judgment on the Pleadings. The Court notes that the pretrial hearing is set for June 26, 2026, and the jury trial is set for June 29, 2026. There is also a Motion for Summary Judgment (ROA 118) filed by the Defendant on 6/22/2026, which is calendared for July 10, 2026. Counsel are to advise the Court whether they are prepared to proceed with the pretrial and jury trial dates, or whether they request that the matter be set after the motion for summary judgment.
5	30-2026-01565351 Regency Palms, LP vs. Riccobono	The Court has read and considered Plaintiff's Motion to Deem the Truth of the Matters Specified in Plaintiff's Request for Admission, Set No. (1), Admitted and Conclusively Established (ROA 59). The Court takes Judicial Notice of the 6/12/2026 Minute Order (ROA 56). As reflected in ROA 56, Plaintiff previously filed a Motion to Deem the Truth of the Matters Specified in Plaintiff's Request for Admission, Set No. 1, Admitted and Conclusively Established (ROA 30). That motion was set for hearing on June 12, 2026, at 8:30 a.m. Although Defendant appeared at the